

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ABDUL ALHAKIM,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DETECTIVE
MICHAEL MENDEZ, Shield #6138 and NYPD
OFFICERS JOHN DOES Nos. 1, 2 &
3 - Police Officers as yet Unidentified,

Defendants,

-----X

Index # 23827/2018E

Law Dept. Case No.
2018-030242

VERIFIED COMPLAINT

Plaintiff, by his attorney, Micah Kwasnik, Esq., complaining of the defendants herein,
upon information and belief, respectfully shows to this Court, and alleges as follows:

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of New York, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT (NYPD).
4. That prior hereto on June 27, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for

more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on September 14, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff was held.

7. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK, employed New York City Police Detective Michael Mendez, Shield #6138 and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

8. In February 2017 Plaintiff began working as a cook at the delicatessen located at 191 Avenue A, NY, NY.

9. Over the last ten days of March 2017 multiple NYPD Personnel, including but not limited to Det. Michael Mendez, did come to Plaintiff's place of employment and inquire about Plaintiff. Specifically, NYPD Personnel inquired as to Plaintiff's whereabouts on March 11, 2017 at 1:48am.

10. All NYPD inquiries as to Plaintiff's whereabouts on March 11, 2017 were met with the same answer – Plaintiff was at work, performing his culinary duties, and there were, at minimum, three alibis.

11. On April 4, 2017 Plaintiff was arrested at 191 Avenue A, NY, NY and taken to the 120 Precinct where he voluntarily made a statement to Det. Mendez. Plaintiff specifically asserted he had not been to Staten Island for one year and had proof that he did not commit the crimes he was now being charged with. Exhibit B.

12. On April 4, 2017 Plaintiff was arraigned in Criminal Court of the City of New York, Richmond County on Docket No. 2017RI002574. Copy of the Criminal Complaint is attached as Exhibit A.

13. Plaintiff was charged with nine criminal counts, including multiple felony burglary and assault charges, all of which were alleged to have occurred on March 11, 2017 at 38 Tompkins Street, Staten Island, NY at 1:48am.

14. The complaining witness and purported victim was named Elizabeth Adames.

15. Plaintiff's bail was set at \$30,000.00. Unable to make bail Plaintiff was held in the custody of New York City Department of Corrections.

16. Plaintiff on April 4, 2017, by his attorney, provided the Office of the District Attorney, Richmond County, with Alibi Notice. Exhibit C.

17. On April 13, 2018, Office of the District Attorney, Richmond County, interviewed Plaintiff's alibi witnesses.

18. On April 14, 2018, Plaintiff, by his attorney, received from the Office of the District Attorney, Richmond County, what was styled as a "Brady Letter". Exhibit D.

19. On April 14, 2018, Office of the District Attorney, Richmond County consented to the Plaintiff's release on his own recognizance from Rikers Island.

20. April 19, 2017, Plaintiff appeared in NYC Criminal Court where Office of the District Attorney, Richmond County dismissed all charges against him.

21. On April 20, 2017 Plaintiff went to NYPD Property Clerk, Richmond County, where was informed that only his phone was in custody, despite the fact that his phone, wallet and keys were taken from him when he was arrested.

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT & BATTERY
ON BEHALF OF ABDUL ALHAKIM**

22. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ABDUL ALHAKIM, was seized, assaulted and battered by defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK, at the aforesaid premises.

23. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned seizure, assault and battery was performed knowingly, intentionally and willfully.

24. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief the defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery and seizure upon the plaintiff, ABDUL ALHAKIM, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

25. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, the seizure, assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

26. By reason of said seizure, assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

27. By the reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ABDUL ALHAKIM**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

33. That defendants, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified.

34. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

35. By the reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST
ON BEHALF OF ABDUL ALHAKIM**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That on April 4, 2017, and at all times hereinafter mentioned and upon Information and belief, defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK, when they seized, arrested and confined the plaintiff, ABDUL ALHAKIM.

38. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, the seizure, arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

39. That as a result of the aforesaid arrest and confinement, plaintiff, ABDUL ALHAKIM, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

40. By the reason of the foregoing, the Plaintiff, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ABDUL ALHAKIM**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

43. Plaintiff was conscious of his confinement and did not consent to said confinement.

44. That defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

45. By the reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF ABDUL ALHAKIM**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

48. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ABDUL ALHAKIM.

49. That as a result of said intentional and negligent acts, the plaintiff, ABDUL ALHAKIM, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

50. By reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ABDUL ALHAKIM**

51. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "51" inclusive with the same force and effect as if more fully set forth at length herein.

52. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted a police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith

53. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

54. That on April 4, 2017, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent. personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

55. By reason of the foregoing, plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ABDUL ALHAKIM**

56. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "55" inclusive with the same force and effect as if more fully set forth at length herein.

57. The defendants, THE CITY OF NEW YORK and including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested, falsely imprisoned the Plaintiff and denied the Plaintiff his property without legal justification in violation of 42 U.S.C section 1983 as well as other applicable state and federal laws.

58. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified acting under color of law and within the scope of their authority, deprived the plaintiff, ABDUL ALHAKIM, of liberty without legal justification in violation of 42 U.S.C Section 1983 as well as other applicable state and federal laws.

59. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

60. That the taking of property, assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C Section 1983 as well as other applicable state and federal laws.

61. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

62. That the defendants' actions were not privileged or immune.

63. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

64. By the reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHT CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ABDUL ALHAKIM**

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

67. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent

acts of the agents, servants and/or employees, including but not limited to Det. M. Mendez and JOHN DOES-Police Officers as yet unidentified, hereinabove alleged.

68. By the reason of the foregoing, the plaintiff, ABDUL ALHAKIM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, ABDUL ALHAKIM, demands judgment both compensatory and exemplary in an amount exceeding the Jurisdictional limits of all lower Courts on the **Seventh** Cause of Action;

(CONINUED ON FOLLOWING PAGE – space left intentionally blank)

plaintiff, ABDUL ALHAKIM, demands Judgment both compensatory and exemplary in an amount exceeding the Jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: BRONX, New York
MAY 30, 2017

Yours, etc.,

By:  _____

Micah Kwasnik, Esq.

EXHIBIT A

**CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF RICHMOND**

THE PEOPLE OF THE STATE OF NEW YORK,

-against-

1. ABDUL ALHAKIM (M 30)

-defendant(s)-

April 19th
to begin a new
FELONY
A presence would
cross
never
serve
2017R1002574



STATE OF NEW YORK)

) ss.:

COUNTY OF RICHMOND)

718 556 7012

Cindy Nwosu

Detective Michael Mendez, shield # 6138 of the 120 Squad, deposes and says as follows

On 03-11-2017 at approximately 01:48 at 38 Tompkins Street, in Staten Island New York in the County of Richmond and State of New York, the defendant committed the offenses of:

1. P.L. 140.30(2) Burglary 1st degree
(defendant #1, 1 count(s))
2. P.L. 140.30(3) Burglary 1st degree
(defendant #1, 1 count(s))
3. P.L. 140.25(2) Burglary 2nd degree
(defendant #1, 1 count(s))
4. P.L. 140.20 Burglary 3rd degree
(defendant #1, 1 count(s))
5. P.L. 120.05(2) Assault 2nd degree
(defendant #1, 1 count(s))
6. P.L. 120.00(1) Assault in the third degree
(defendant #1, 1 count(s))
7. P.L. 265.01(2) Criminal Possession of a Weapon 4th degree
(defendant #1, 1 count(s))
8. P.L. 145.00(1) Criminal Mischief 4th degree
(defendant #1, 1 count(s))
9. P.L. 240.26(1) Harassment 2nd degree
(defendant #1, 1 count(s))

Chimdi. Nwosu @ rcdm.nyc.gov

in that the defendant(s) did: knowingly enter or remain unlawfully in a dwelling with intent to commit a crime therein and cause physical injury; knowingly enter or remain unlawfully in a dwelling with intent to commit a crime therein and use or threaten the immediate use of a dangerous instrument; knowingly enter or remain unlawfully in a building with intent to commit a crime therein; knowingly enter or remain unlawfully in a dwelling with intent to commit a crime therein; intentionally cause physical injury by means of a deadly weapon or a dangerous

instrument; intentionally cause physical injury; possess any dagger, dangerous knife, dirk, razor, stiletto, imitation pistol, or any other dangerous or deadly instrument or weapon with intent to use the same unlawfully against another; intentionally damage property of another person, while having no right to do so nor any reasonable ground to believe that he had such right; and with intent to harass, annoy or alarm another person struck, shoved, kicked or otherwise subjected such other person to physical contact, or attempted or threatened to do the same.

The offenses were committed under the following circumstances: *

Deponent is informed by informant, ELIZABETH ADAMES, that the informant observed defendant enter into her apartment dwelling by way of breaking a first floor window located in informant's bedroom. Deponent further states that he is informed by informant that defendant proceeded to grab a dangerous instrument, to wit: a broomstick, and proceeded to strike informant multiple times across the body causing physical injury, including but not limited to: substantial bruising, lacerations, scratches, redness, swelling, soreness, and substantial pain, as well as annoyance and alarm.

Deponent is further informed by informant that she is the lawful custodian of the above dwelling and that the defendant had no permission or authority to enter said dwelling.

False statements made herein are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law.

Sworn to before me on April 4, 2017

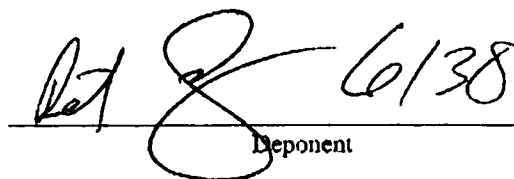
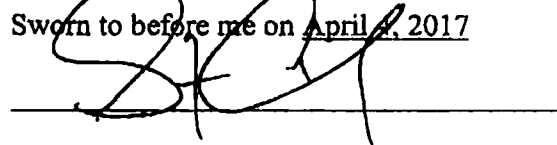

Deponent

EXHIBIT B

**CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF RICHMOND**

THE PEOPLE OF THE STATE OF NEW YORK

-against-

Alhakim, Abdul

Defendant

**NOTICE PURSUANT TO
CRIMINAL PROCEDURE
LAW § 710.30 & 250.20**

&

**PEOPLE'S REQUEST FOR
RECIPROCAL DISCOVERY**

1. **PLEASE TAKE NOTICE**, that pursuant to Criminal Procedure Law § 710.30 (1)(a), during trial, the People intend to offer evidence of a statement made by the defendant to a public servant. The sum and substance of the statement is offered below or attached/referenced herein.

Date: 04/04/2017

Statement made to officer: Detective Mendez

Form of Statement: Video recording

Statement Location: 120 Precinct

Statement Text: Sum and substance I WASN'T THERE. I GOT KICKED OUT OF MY APARTMENT 1 YEAR AGO AND HAVE BEEN LIVING IN MANHATTAN

Date: 04/04/2017

Form of Statement: Video recording

Statement Location: inside 120 Precinct

Statement Text: Sum and substance SHE STOLE MONEY FROM ME AND MY CAR IN THE PAST

Date: 04/04/2017

Statement made to officer: Detective Mendez

Form of Statement: Video recording

Statement Location: inside 120 Precinct

Statement Text: Sum and substance I HAVE PROOF I DIDN'T DO IT.

Date: 04/04/2017

Statement made to officer: Detective Mendez

Form of Statement: Video recording

Statement Location: inside 120 Precinct

Statement Text: See video interview

2. **PLEASE TAKE NOTICE**, that pursuant to Criminal Procedure Law § 710.30 (1)(b), during trial, the People intend to offer testimony regarding an observation of the defendant upon some occasion relevant to the case, which testimony will be given by witness(es) who has/have previously identified the defendant as such.

None.

3. **PLEASE TAKE NOTICE**, that pursuant to Criminal Procedure Law § 250.20, the People demand that if the defendant intends to offer at trial the defense that at the time of the commission of the crime charged he was at some place or places other than the scene of the crime, and to call witnesses in support of such defense, he must, within eight (8) days of service of this demand, serve upon the People and file with the Court a "Notice of Alibi" reciting (a) the place or places the defendant claims to have been at the time in question, and (b) the names, residential addresses, places of employment and address thereof of every such alibi witness upon whom he intends to rely. Within a reasonable time after receipt of the list of defendant's the People will serve upon the defendant or his counsel and file with the Court a list of the witnesses the People propose to offer in rebuttal to discredit the defendant's alibi at the trial together with their residential address, their places of employment and the addresses thereof.

4. **PLEASE TAKE NOTICE**, that pursuant to Criminal Procedure Law § 240.30 (1), the People hereby demand that defendant supply the District Attorney with (a) any written report or document, or portion thereof, concerning a physical or mental examination, or scientific test, experiment, or comparisons, made by or at

the request or direction of the defendant, if the defendant intends to introduce such report or document at trial, or if defendant has filed a notice of intent to proffer psychiatric evidence and such report or document which relates thereto or if such report or document was made by a person other than defendant, whom defendant intends to call as a witness at trial; and (b) any photograph, drawing, tape, or other electronic recording which the defendant intends to introduce at trial.

Dated: Staten Island, New York
04/04/2017

MICHAEL E. MCMAHON
DISTRICT ATTORNEY, RICHMOND COUNTY
130 Stuyvesant Place, 7th Floor
Staten Island, New York 10301

EXHIBIT C

Subject: Alibi Notice - 2017RI002574
From: Micah Kwasnik (micahkwasnik@yahoo.com)
To: chlmdl.nwosu@rcda.nyc.gov;
Date: Wednesday, April 5, 2017 3:23 PM

ADA NWOSU,

On the March 11, 2017 at 1:48am Defendant Alhakim was at 191 Ave., NY, NY.

Alibi Witnesses are:

Rawdi Ali
Hany Doubai
Louis Guaman

All can be reached at the above address. Telephone number there is 212 228 7878.

As we discussed on the phone, I would be happy to wave time, however, I want to make sure Mr. Alhakim can post bail. What I am proposing is on Friday, Defense waives time and requests that the Court lower the bond to \$10,000.00 and cash bail to \$5000.00. I would ask they that the Prosecution consent to the application or at minimum raise no objections to a reduction in bail. That way my client can be free and assist in his defense and the Prosecution would have the opportunity to investigate the alibi.

Thank you,

Micah Kwasnik, Esq.
tel. (917) 533-6822

EXHIBIT D

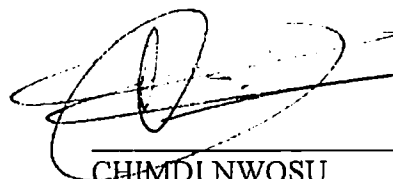
**CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF RICHMOND, PART AP1****THE PEOPLE OF THE STATE OF NEW YORK**Docket No. **2017RI002574***-against-***Abdul Alhakim***Defendant.*

April 14, 2017

TO WHOM IT MAY CONCERN:

An additional witness to the alleged burglary came to my attention during my investigation of the above captioned case. This witness, informed me via telephone on April 13, 2017 that the person he observed inside of the victim, Elizabeth Adames' home who broke in through her window and struck both him and the victim with a broom handle was a dark skinned African American male possibly named "Tarik" who the victim described to him as her child Maxton Staley's father.

A Second witness who called 911 described two males exiting Ms. Adames' home at the time of the incident. The description given by the caller is of one male chasing the other with a metal object in his hand. One of the males is described as dark-skinned African American. The above mentioned additional eyewitness is a fair-skinned African American male.



CHIMDI NWOSU

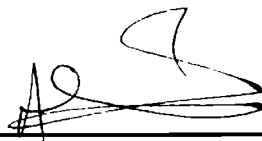
Assistant District Attorney
Richmond County
130 Stuyvesant Place, 7th Floor
Staten Island, New York 10301
(718)556-7012

VERIFICATION

I, Abdul Alhakim, have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

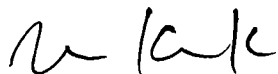
Dated: Bronx, New York

May 30, 2018



SWORN BEFORE ME ON THE 30th of May 2018

On the 30th day of May in the year 2018, before me, the undersigned notary public, personally appeared Addul Alhakim, personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), and that by his/her/their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.



_____, Notary Public, New York State

Micah Kwasnik - No. 02KW6296282

Qualified in Westchester County, Commission Expires 1/27/2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index # 23827/2018E

Law Dept. Case No.
2018-030242

ABDUL ALHAKIM,
Plaintiff,
-against-

THE CITY OF NEW YORK,
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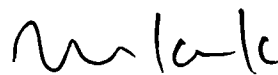
Affirmation of Service

I, Micah Kwasnik, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirm under penalty of perjury that on May 31, 2018, I served a copy of the VERIFIED COMPLAINT, via USPS 1st Class mail, in a sealed pre-paid envelope addressed to:

Det. Michael Mendez, Shield No. 6138
120 Precinct, NYPD
78 Richmond Terrace
Staten Island, NY 10301

NYC Corporation Counsel
100 Church St.
NY, NY 10007
Attn.: Gianna M. Famulari

Dated: May 31, 2018
Bronx, NY



Micah Kwasnik, Esq.
1808 Barnes Ave.
Bronx, 10462

SUPREME COURT OF THE STATE OF NEW YORK

Index # 23827/2018E

COUNTY OF BRONX

Law Dept. Case No.
2018-030242

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ABDUL ALHAKIM,

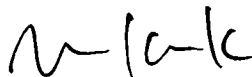
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THE CITY OF NEW YORK,
NEW YORK CITY POLICE DETECTIVE
MICHAEL MENDEZ, Shield #6138 and NYPD
OFFICERS JOHN DOES Nos. 1, 2 &
3 - Police Officers as yet Unidentified,

Defendants,
-----X

Signature (Rule 130-1.1-a)



Print name beneath

Micah Kwasnik, Esq.

Attorney for Plaintiff - Office and Post Office Address, Telephone
1808 Bares Avenue, Bronx, NY 10462, (917) 533-6822

To: Det. Michael Mendez, Shield No. 6138
120 Precinct, NYPD
78 Richmond Terrace
Staten Island, NY 10301

NYC Corporation Counsel
100 Church St.
NY, NY 10007
Attn.: Gianna M. Famulari

Service of a copy of the within is hereby admitted.

Dated
